

25STCV29538 25STCV29538

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 19, 2026

CASE NUMBER

25STCV29538

MOTIONS

Demurrer to Complaint;

Motion to Strike Portions of Complaint

MOVING PARTY

Defendant Pheat Kim Ngor, as Trustee of the Pheat Kim Ngor

Revocable Living Trust Dated May 24, 2016

OPPOSING PARTIES

Plaintiffs Rubi

Gomez, Jesus Navarrete, Kimberly Navarrete, Maria Del Rosario Salcedo-Garcia,
Minerva Garcia Castro, Oscar Ostrom Gutierrez Araujo, Elain Ostrom
Gutierrez, Obdulia Gutierrez Araujo, and Lorena Ostrom Gutierrez

MOTION

Plaintiffs Rubi

Gomez, Jesus Navarrete, Kimberly Navarrete, Maria Del Rosario Salcedo-Garcia, Minerva
Garcia Castro, Oscar Ostrom Gutierrez Araujo, Elian Ostrom Gutierrez, Obdulia
Gutierrez Araujo, and Lorena Ostrom Gutierrez ("Plaintiffs") brought the
instant action against Defendant Pheat Kim Ngor, as Trustee of the Pheat Kim
Ngor Revocable Living Trust Dated May 24, 2016 ("Defendant") and Defendant Armando
Ruiz, in which Plaintiffs allege both Defendants were the purported owners,
managers, and/or controllers of the subject property at relevant times and they
committed habitability violations. Only Defendant
has demurred to and moved to strike portions of Plaintiffs' complaint.

Plaintiffs oppose
the motions.

ANALYSIS

"It is black
letter law that a demurrer tests the legal sufficiency of the allegations in a complaint."
(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In
ruling on a demurrer, the court must "liberally construe[]" the allegations of
the complaint. (Code Civ. Proc., § 452.)
"This rule of liberal construction means that the reviewing court draws
inferences favorable to the plaintiff, not the defendant." (Perez v.
Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Any party, within
the time allowed to respond to a pleading, may serve and file a motion to
strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd.
(b)(1); Cal. Rules of Court, rule 3.1322(b).)
On a motion to strike, the court may: (1) strike out any irrelevant,
false, or improper matter inserted in any pleading; or (2) strike out all or
any part of any pleading not drawn or filed in conformity with the laws of
California, a court rule, or an order of the court. (Code Civ. Proc., § 436,
subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

Demurrer

Essentially, Defendant

argues Plaintiffs' complaint is unclear because Plaintiffs do not allege their claims individually, and Plaintiffs must allege "what/which wrongful conduct was committed against which of the Plaintiffs, by which of the Landlords, when, and what damages each of the Plaintiffs sustained." (Demurrer to Complaint, p. 5.) The Court is not convinced separately alleging the distinct claims of each Plaintiff would render the pleadings easier to understand. Moreover, Defendants may obtain further information regarding Plaintiffs' individual claims through discovery. (See *Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures"].)

Therefore, the
demurrer is overruled.

Motion to
Strike

Defendant moves to

strike the prayer for punitive damages. In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721 (*College Hospital*).) Pursuant to Civil Code section 3294, subdivision (a), a plaintiff must allege the defendant has been guilty of oppression, fraud, or malice. "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*College Hospital, supra*, 8 Cal.4th at p. 725.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3d

159, 166, internal citations and footnotes omitted.)

In this regard, Plaintiffs

allege Defendant is liable for “receiving rents for the Subject Property; being entitled to receive rents for the Subject Property; management of the Subject Property; operation of the Subject Property; leasing of the Subject Property; maintenance of the Subject Property; maintaining books, records and accounts for the Subject Property; obtaining and keeping tenants at the Subject Property; negotiation, renewal, extension, modification and cancellation of leases for the Subject Property; pursuing legal action against tenants for allegedly failing to pay rents due for the Subject Property; inspecting the Subject Property; distribution of notices for the Subject Property; and/or promulgation of rules for the Subject Property between least 2016 through April 15, 2025.” (Complaint, ¶ 9.) Plaintiffs

also allege they notified Defendant about habitability violations, and Defendants received numerous citations from government entities, but Defendant failed to correct the conditions. (Id., ¶¶ 25, 26.) Plaintiffs then assert Defendant’s conduct was “willful, oppressive, and malicious. (Id., ¶ 31.)

By so pleading, Plaintiffs

do not allege any specific facts to show Defendant acted with oppression, fraud, or malice. As such, Plaintiffs have not alleged a claim for punitive damages against Defendant. The Court grants the motion to strike the prayer for punitive damages but will provide Plaintiffs with an opportunity to amend the complaint to sufficiently allege any entitlement they may have to be awarded punitive damages.

CONCLUSION AND ORDER

Defendant’s

demurrer to complaint is overruled.

Defendant’s motion

to strike is granted with leave to amend.

Plaintiffs are to file an amended complaint within 20 days of notice of the Court’s order.

Defendant is

ordered to provide such notice and to file proof of service of same.